THE NATIONAL COMPANY LAW TRIBUNAL

PRINCIPAL BENCH, NEW DELHI

COMPANY APPLICATION NO. (CAA)-05(PB)/2021

Under Section 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

In the Matter of Scheme of Arrangement

among

NIRJARA ENTERPRISE LIMITED

... Transferor/Applicant Company 1

And

SRESHTHA APPARELS LIMITED

...Transferor/Applicant Company 2

And

ANANDA CLOTHING LIMITED

... Transferor/Applicant Company 3

And

CHANDRANSHU MARKETING LIMITED

...Transferor/Applicant Company 4

And

IESOUS MARKETING PRIVATE LIMITED

... Transferor/Applicant Company 5

And

CHRONOS INTERNATIONAL LIMITED

...Transferor/Applicant Company 6

And

NANDISH ENTERPRISES PRIVATE LIMITED

... Transferee/Applicant Company 7

And

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on: 10.05.2021

CORAM:

SHRI B.S.V PRAKASH KUMAR

HON'BLE ACTG. PRESIDENT

SHRI HEMANT KUMAR SARANGI

HON'BLE MEMBER (TECHNICAL)

For Applicants: Mr. Ashutosh Gupta & Mr. Gaurav Rana, Advocates

ORDER

PER- B.S.V PRAKASH KUMAR, ACTNG. PRESIDENT

Order Pronounced on: 10.05.2021

1. This Company Application has been jointly filed by the Applicant Companies, under Section 230-232, of The Companies Act, 2013, r/w Companies (Compromises, Arrangements and Amalgamations) Rules, 2016. The Applicant Companies herein have proposed a Scheme of Arrangement by virtue of which the entire undertakings of the Transferor Companies are to be transferred and vested with the Transferee Company, as a going concern. The Applicant Companies have prayed for seeking directions for convening, holding and conducting of the meeting of the Shareholders and prayed to dispense with convening, holding and conducting of the meeting of the Secured and Unsecured Creditors.

2. **Nirjara Enterprise Limited:**

i. The Transferor Company-1 viz., Nirjara Enterprise Limited has 7 (Seven) Equity Shareholders. The List of Equity Shareholders is placed at Page 103 of the typed set filed with the Application. The meeting of the Equity Shareholders is scheduled to be held on 10th July, 2021, at 09:30 AM, through Video Conferencing (VC) and publication to be made in the "Business Standard" (English Edition) and "Business Standard" (Hindi Edition). The notices in this regard shall be sent by Registered Post/Speed Post or through Email, addressed to each of the shareholder of the Transferor Company-1, at their last known address or email addresses as per the records of the Transferor Company-1. The notice shall be issued with a clear 30 days prior to the date of the meeting. The Quorum for the meeting is fixed at 2 (Two) Shareholders. If the quorum is not complete at the time of the meeting, it shall adjourn the meeting by 30 minutes, and the members present shall be deemed to constitute the quorum for the said meeting. The meeting is to be chaired by Mr. Sanjay Jeswani, Advocate (Mobile no. 7020456195) or in his absence Mrs. Sheena Sood, Advocate (Mobile no.

6232082230) will chair the meeting and Mrs. Aditi Gupta, PCS (Mobile no. 9871433338) is appointed as Scrutinizer. The Chairman's Report shall be filed before this tribunal, on or before 7 days from the date of the meeting.

ii. The Transferor Company-1 has No Secured and Unsecured Creditors. The Nil Secured Creditor Certificate and Unsecured Creditors Certificate issued by an independent Chartered Accountant as on 07.09.2020 are placed at pages 148B and 149 of the typed set filed with the Application. Hence, there is no need for the meeting of Secured and Unsecured Creditors.

3. **Sreshtha Apparels Limited:**

i. The Transferor Company-2 viz., Sreshtha Apparels Limited has 7 (Seven) Equity Shareholders. The List of Equity Shareholders is placed at Page 191 of the typed set filed with the Application. The meeting of the Equity Shareholders is scheduled to be held on 10th July, 2021, at 10:30 AM, through Video Conferencing (VC) and publication to be made in the "Business Standard" (English Edition) and "Business Standard" (Hindi Edition). The notices in this regard shall be

sent by Registered Post/Speed Post or through Email, addressed to each of the shareholder of the Transferor Company-2, at their last known address or email addresses as per the records of the Transferor Company-2. The notice shall be issued with a clear 30 days prior to the date of the meeting. The Quorum for the meeting is fixed at 2 (Two) Shareholders. If the quorum is not complete at the time of the meeting, it shall adjourn the meeting by 30 minutes, and the members present shall be deemed to constitute the quorum for the said meeting. The meeting is to be chaired by Mr. Sanjay Jeswani, Advocate (Mobile no. 7020456195) or in his absence Mrs. Sheena Sood, Advocate (Mobile no. 6232082230) will chair the meeting and Mrs. Aditi Gupta, PCS (Mobile no. 9871433338) is appointed as Scrutinizer. The Chairman's Report shall be filed before this tribunal, on or before 7 days from the date of the meeting.

ii. The Transferor Company-2 has No Secured and Unsecured Creditors. The Nil Secured Creditor Certificate and Unsecured Creditors Certificate issued by an independent Chartered Accountant as on 07.09.2020 are placed at pages 236B & 237 of the typed set filed with the Application. Hence,

there is no need for the meeting of Secured and Unsecured Creditors.

4. **Ananda Clothing Limited:**

i. The Transferor Company-3 viz., Ananda Clothing Limited has 7 (Seven) Equity Shareholders. The List of Equity Shareholders is placed at Page 269 of the typed set filed with the Application. The meeting of the Equity Shareholders is scheduled to be held on 10th July, 2021, at 11:30 PM, through Video Conferencing (VC) and publication to be made in the "Business Standard" (English Edition) and "Business Standard" (Hindi Edition). The notices in this regard shall be sent by Registered Post/Speed Post or through Email, addressed to each of the shareholder of the Transferor Company-3, at their last known address or email addresses as per the records of the Transferor Company-3. The notice shall be issued with a clear 30 days prior to the date of the meeting. The Quorum for the meeting is fixed at 2 (Two) Shareholders. If the quorum is not complete at the time of the meeting, it shall adjourn the meeting by 30 minutes, and the members present shall be deemed to constitute the quorum for the said meeting. The meeting is to be chaired by Mr.

Sanjay Jeswani, Advocate (Mobile no. 7020456195) or in his absence Mrs. Sheena Sood, Advocate (Mobile no. 6232082230) will chair the meeting and Mrs. Aditi Gupta, PCS (Mobile no. 9871433338) is appointed as Scrutinizer. The Chairman's Report shall be filed before this tribunal, on or before 7 days from the date of the meeting.

ii. The Transferor Company-3 has No Secured Creditors. The Nil Secured Creditor Certificate issued by an independent Chartered Accountant as on 08.09.2020 is placed at page 315B of the typed set filed with the Application. Hence, there is no need for the meeting of Secured Creditors.

iii. The Transferor Company-3 has only 1 (One) Unsecured Creditor. The Certificate issued by an Independent Chartered Accountant to this effect is placed at page 316 of the typed set filed with the Application. The consent affidavit given by the Sole Unsecured Creditor constituting 100% in terms of value, is placed at pages 319 to 322 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with the holding of the meeting of Unsecured Creditor. Therefore, the meeting of the Unsecured Creditor of the Transferor Company-3 is

allowed to be dispensed with under Clause (9) of Section 230 of the Companies Act, 2013.

5. **Chandranshu Marketing Limited:**

i. The Transferor Company-4 viz., Chandranshu Marketing Limited has 7 (Seven) Equity Shareholders. The List of Equity Shareholders is placed at Page 365 of the typed set filed with the Application. The meeting of the Equity Shareholders is scheduled to be held on 10th July, 2021, at 12:30 PM, through Video Conferencing (VC) and publication to be made in the "Business Standard" (English Edition) and "Business Standard" (Hindi Edition). The notices in this regard shall be sent by Registered Post/Speed Post or through Email, addressed to each of the shareholder of the Transferor Company-4, at their last known address or email addresses as per the records of the Transferor Company-4. The notice shall be issued with a clear 30 days prior to the date of the meeting. The Quorum for the meeting is fixed at 2 (Two) Shareholders. If the quorum is not complete at the time of the meeting, it shall adjourn the meeting by 30 minutes, and the members present shall be deemed to constitute the quorum for the said meeting. The meeting is to be chaired by Mr.

Sanjay Jeswani, Advocate (Mobile no. 7020456195) or in his absence Mrs. Sheena Sood, Advocate (Mobile no. 6232082230) will chair the meeting and Mrs. Aditi Gupta, PCS (Mobile no. 9871433338) is appointed as Scrutinizer. The Chairman's Report shall be filed before this tribunal, on or before 7 days from the date of the meeting.

ii. The Transferor Company-4 has No Secured and Unsecured Creditors. The Nil Secured Creditor Certificate and Unsecured Creditors Certificate issued by an independent Chartered Accountant are placed at pages 410B & 411 of the typed set filed with the Application. Hence, there is no need for the meeting of Secured and Unsecured Creditors.

6. **Iesous Marketing Private Limited:**

i. The Transferor Company-5 viz., Iesous Marketing Private Limited has 3 (Three) Equity Shareholders. The List of Equity Shareholders is placed at Page 439 of the typed set filed with the Application. The meeting of the Equity Shareholders is scheduled to be held on 10th July, 2021, at 01:30 PM, through Video Conferencing (VC) and publication to be made in the "Business Standard" (English Edition) and "Business

Standard" (Hindi Edition). The notices in this regard shall be sent by Registered Post/Speed Post or through Email, addressed to each of the shareholder of the Transferor Company-5, at their last known address or email addresses as per the records of the Transferor Company-5. The notice shall be issued with a clear 30 days prior to the date of the meeting. The Quorum for the meeting is fixed at 2 (Two) Shareholders. If the quorum is not complete at the time of the meeting, it shall adjourn the meeting by 30 minutes, and the members present shall be deemed to constitute the quorum for the said meeting. The meeting is to be chaired by Mr. Sanjay Jeswani, Advocate (Mobile no. 7020456195) or in his absence Mrs. Sheena Sood, Advocate (Mobile no. 6232082230) will chair the meeting and Mrs. Aditi Gupta, PCS (Mobile no. 9871433338) is appointed as Scrutinizer. The Chairman's Report shall be filed before this tribunal, on or before 7 days from the date of the meeting.

ii. The Transferor Company-5 has No Secured and Unsecured Creditors. The Nil Secured Creditor Certificate and Unsecured Creditors Certificate issued by an independent Chartered Accountant are placed at pages 475B & 476 of the

typed set filed with the Application. Hence, there is no need for the meeting of Secured and Unsecured Creditors.

7. **Chronos International Limited:**

i. The Transferor Company-6 viz., Chronos International Limited has 7 (Seven) Equity Shareholders. The List of Equity Shareholders is placed at Page 506 of the typed set filed with the Application. The meeting of the Equity Shareholders is scheduled to be held on 10th July, 2021, at 03:30 PM, through Video Conferencing (VC) and publication to be made in the "Business Standard" (English Edition) and "Business Standard" (Hindi Edition). The notices in this regard shall be sent by Registered Post/Speed Post or through Email, addressed to each of the shareholder of the Transferor Company-6, at their last known address or email addresses as per the records of the Transferor Company-6. The notice shall be issued with a clear 30 days prior to the date of the meeting. The Quorum for the meeting is fixed at 2 (Two) Shareholders. If the quorum is not complete at the time of the meeting, it shall adjourn the meeting by 30 minutes, and the members present shall be deemed to constitute the quorum for the said meeting. The meeting is to be chaired by Mr.

Sanjay Jeswani, Advocate (Mobile no. 7020456195) or in his absence Mrs. Sheena Sood, Advocate (Mobile no. 6232082230) will chair the meeting and Mrs. Aditi Gupta, PCS (Mobile no. 9871433338) is appointed as Scrutinizer. The Chairman's Report shall be filed before this tribunal, on or before 7 days from the date of the meeting.

ii. The Transferor Company-6 has No Secured and Unsecured Creditors. The Nil Secured Creditor Certificate and Unsecured Creditors Certificate issued by an independent Chartered Accountant are placed at pages 551B & 552 of the typed set filed with the Application. Hence, there is no need for the meeting of Secured and Unsecured Creditors.

8. **Nandish Enterprises Private Limited:**

i. The Transferee Company viz., Nandish Enterprises Limited has 2 (Two) Equity Shareholders. The List of Equity Shareholders is placed at Page 576 of the typed set filed with the Application. Dispensation of meeting of the Equity Shareholders of Transferee Company is allowed since the entire equity share capital of Applicant Company is held by M/s. Nirjara Enterprises Limited and M/s. Sreshtha Apparels

Limited and both of them are before this Bench as Applicant No.1 and 2 respectively. Further they have given their consent to dispense the meeting of shareholders of the Transferee Company. Consent affidavits have been received from equity shareholders of the Applicant Company constituting 100% in value and 100% in number. Therefore, the meeting of the Equity Shareholders of the Transferee Company is allowed to be dispensed with.

ii. The Transferee Company has No Secured and Unsecured Creditors. The Nil Secured Creditor Certificate and Unsecured Creditors Certificate issued by an independent Chartered Accountant are placed at pages 605B & 606 of the typed set filed with the Application. Hence, there is no need for the meeting of Secured and Unsecured Creditors.

9. Based on the prayers made by the Applicant Companies in the present Scheme of Amalgamation, this Bench directs, in accordance to Section 230(5) of the Companies Act, 2013, to issue notices to the Regional Director (Northern Region), Ministry of Corporate Affairs, Income Tax Authorities, RoC concerned and the Official Liquidator.

10. The authorities are directed to make objection/representations, if any within 30 days from the date of receipt of the notice. In the event that no objections or representations are made within the stipulated timeframe, it shall be presumed that they do not have any objections.

11. The Applicant Companies are directed to place the notice on their website, if any, and also place the same on the notice board of the registered office of Companies. The Applicant Companies are also directed to send private notices to the authorities by way of speed post and file the proof of service along with the paper publication, by way of an affidavit before the next date of hearing.

12. The Company Petition(s) shall be presented, on or before, 7 days from the date of filing the Chairman's Reports with the registry. Accordingly, the Application stand **disposed of**.

SD/-

(B.S.V PRAKASH KUMAR)
ACTNG. PRESIDENT

SD/-

(HEMANT KUMAR SARANGI)
MEMBER (TECHNICAL)

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